

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 2, 2026
8:30 AM/1:30 PM

1. ESPERANZA WOOLEVER V. CHRISTOPHER WOOLEVER

PFL20180325

On January 14, 2026, Respondent filed a Request for Order (RFO) seeking to compel discovery responses. It was served along with all other required documents on January 16th and again on January 19th.

On August 25, 2025, Respondent served Petitioner with Demand for Production of Documents and Tangible Things; Set One (Amended). The requests were served electronically thereby making responses due on or before September 25, 2025. As of the date of filing the RFO, no responses had been served. Respondent requests an order compelling Petitioner to respond within 10 days of the hearing date, monetary sanctions in the amount of \$2,000 and attorney's fees in the amount of \$2,500. It is unclear whether both of these requests are made as discovery sanctions or if Respondent is requesting the \$2,500 as need-based attorney's fees.

The Civil Discovery Act authorizes all parties to request documents from the opposing party by way of a Request for Production of Documents. Cal. Civ. Pro. §2031.210. Responses to requests for production are due within 30 days of the date of service. Cal Civ. Pro. §2031.300. Where a party fails to provide timely responses the party to whom the discovery was directed waives "any objection...including one based on privilege or on the protection of work product..." and "[t]he party making the demand may move for an order compelling response[s]..." Cal Civ. Pro. §2031.300(a).

Here, Respondent has sufficiently established Petitioner's failure to comply with her discovery obligations. Respondent has provided the court with copies of the discovery as well as the proofs of service thereof. As such, Respondent's Motion to Compel is granted. Petitioner shall provide full and complete verified responses, without objections, to Demand for Production of Documents and Tangible Things; Set One (Amended) no later than April 12, 2026.

Under the circumstances it appears monetary sanctions are also warranted. Where a party engages in the misuse of the discovery process, the court "shall" impose monetary sanctions "unless it finds that one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Cal. Civ. Pro. 2023.030(a)(emphasis added) & 2023.020. Misuse of the discovery process includes, but is not limited to, failing to respond or submit to an authorized method of discovery. Cal. Civ. Pro. § 2023.010. A party requesting sanctions for reasonable expenses that were incurred as a result of discovery abuse must already be liable for those expenses

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before the court can award the costs as sanctions. See *Tucker v. Pacific Bell Mobile Servs.*, 186 Cal. App. 4th 1548 (2010) (anticipated costs for future deposition could not be included in award of sanctions).

“... [I]n addition to any other sanctions imposed ...a court *shall* impose a one-thousand-dollar (\$1,000) sanction, payable to the requesting party...” if the court finds that the noncompliant party did not respond in good faith to a request for production of documents, or failed to make a reasonable good faith attempt to informally resolve a discovery dispute. Cal. Civ. Pro. § 2023.050(a).

By failing to provide full and complete, verified responses within the allotted timeframe, Petitioner has engaged in misuse of the discovery process. That said, Respondent has not established that he has incurred \$2,500 worth of attorney’s fees associated solely with misuse of the discovery process (i.e. meet and confer efforts, preparation and filing of the motion, etc.). Moreover, the court does not find \$2,500 incurred to be reasonable where no responses were ever served thus making the meet and confer efforts and preparation of the motion rather quick and straightforward. As such, the court finds \$750 to be a more reasonable amount of fees incurred. Additionally, because Petitioner failed to produce documents, she is sanctioned \$1,000 pursuant to Civil Procedure § 2023.050(a).

Respondent is awarded \$1,750 in sanctions. Sanctions are to be paid by Petitioner directly to Respondent’s attorney. They may be paid in one lump sum or in monthly increments of \$97.22 commencing on April 15, 2026 and continuing on the 15th of each month until paid in full (approximately 18 months). If any payment is missed or late the entire amount shall become immediately due and payable.

To the extent the request for \$2,500 in attorney’s fees is pursuant to Family Code § 2030, the request is denied due to failure to file the requisite paperwork.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #1: RESPONDENT’S MOTION TO COMPEL IS GRANTED. PETITIONER SHALL PROVIDE FULL AND COMPLETE VERIFIED RESPONSES, WITHOUT OBJECTIONS, TO DEMAND FOR PRODUCTION OF DOCUMENTS AND TANGIBLE THINGS; SET ONE (AMENDED) NO LATER THAN APRIL 12, 2026.

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RESPONDENT IS AWARDED \$1,750 IN SANCTIONS. SANCTIONS ARE TO BE PAID BY PETITIONER DIRECTLY TO RESPONDENT'S ATTORNEY. THEY MAY BE PAID IN ONE LUMP SUM OR IN MONTHLY INCREMENTS OF \$97.22 COMMENCING ON APRIL 15, 2026 AND CONTINUING ON THE 15TH OF EACH MONTH UNTIL PAID IN FULL (APPROXIMATELY 18 MONTHS). IF ANY PAYMENT IS MISSED OR LATE THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE.

TO THE EXTENT THE REQUEST FOR \$2,500 IN ATTORNEY'S FEES IS PURSUANT TO FAMILY CODE § 2030, THE REQUEST IS DENIED DUE TO FAILURE TO FILE THE REQUISITE PAPERWORK.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.